

Manoj Kumar v. State of U.P. — permanent disconnection bars reconnection

High Court of Judicature at Allahabad · Single Judge · 5 March 2024 · WRIT - C No. 26503 of 2023 · **Permanent disconnection bars reconnection; new connection on deposit; writ pending**

HEADNOTE

Clause 4.39 of the U.P. Electricity Supply Code, 2005 does not permit reconnection after permanent disconnection; the consumer must apply for a new connection. An interim direction to reconnect on deposit of Rs 1,80,000 is modified to require that deposit and a fresh application, which the Executive Engineer is to process. The writ challenging the Permanent Lok Adalat order and recovery citation remains pending, with the interim stay continued.

FACTUAL SUMMARY

Manoj Kumar challenged a Permanent Lok Adalat, Aligarh order dated 19.07.2023 and a Tehsildar, Atrauli recovery citation dated 02.04.2022, alleging a wrongly calculated electricity bill, and sought an instalment scheme. On 10.08.2023 the High Court stayed both orders subject to deposit of Rs 1,80,000 and directed Dakshinanchal Vidyut Vitran Nigam Ltd. to reconnect supply if the deposit was made. He then sought modification, stating that his connection had been terminated from 19.09.2020 and permanently disconnected by office memorandum dated 28.07.2021.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.39(b)

reconnection after permanent disconnection

HOLDING

A permanently disconnected connection cannot be reconnected under the Supply Code; the consumer must apply for a new connection. The 10.08.2023 direction that DVVNL reconnect supply on deposit of Rs 1,80,000 is modified: if the petitioner deposits that amount within one month and applies for a new connection, the Executive Engineer, EDD-II, DVVNL, Aligarh shall take necessary steps. Modification application disposed; writ listed before the appropriate Bench and not treated as tied up; interim order continues. ¶ 3-5

FLAG order cites clause 4.39 without a sub-clause; the PD/new-connection rule is 4.39(b)

PRINCIPLE TAGS

reconnection-available-after-permanent-disconnection-clause-4.39 Clause 4.39 of the U.P. Electricity Supply Code, 2005 does not permit reconnection after permanent disconnection; the consumer must apply for a new connection.. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CHALLENGE TO THE PERMANENT LOK ADALAT ORDER DATED 19.07.2023, THE RECOVERY CITATION DATED 02.04.2022, AND THE CORRECTNESS OF THE ELECTRICITY BILL

Counter affidavit was directed; writ listed before the appropriate Bench with interim stay continued. ¶ 1

